(1)

No. 00-1595

In The

Supreme Court of the United States

HOFFMAN PLASTIC COMPOUNDS, INC.,

Petitioner,

v.

NATIONAL LABOR RELATIONS BOARD,

Respondent.

On Writ Of Certiorari
To The United States Court Of Appeals
For The District Of Columbia Circuit

JOINT APPENDIX

RYAN D. MCCORTNEY
Counsel of Record
for Petitioner
WENDI J. DELMENDO
SHEPPARD, MULLIN,
RICHTER & HAMPTON LLP
650 Town Center Dr.,
4th Floor
Costa Mesa, CA
92626-1925
(714) 513-5100

THEODORE B. OLSON
Solicitor General of the U.S.
Counsel of Record
for Respondent
DEPARTMENT OF JUSTICE
Room 5614
950 Pennsylvania Ave., N.W.
Washington, D.C. 20530-0001
(202) 514-2217

Petition For Writ Of Certiorari: Filed April 16, 2001
Certiorari: Granted September 25, 2001

COCKLE LAW BRIEF PRINTING CO., (800) 225-6964
OR CALL COLLECT (402) 342-2831

13 pp

TABLE OF CONTENTS

Page

General Docket of the Court of Appeals for the D.C. Circuit, *Hoffman Plastic Compounds, Inc. v. NLRB* 1-11

Hoffman Plastic Compounds, Inc. and Casimiro Arauz, 326 N.L.R.B. 1060 (1998) 78a-95a*

Hoffman Plastic Compounds, Inc. v. NLRB, 208 F.3d 229 (D.C. Cir. 2000) (vacated) 37a-77a

Hoffman Plastic Compounds, Inc. v. NLRB, 164 L.R.R.M. (BNA) 2814 (D.C. Cir. June 16, 2000) (granting *en banc* review) 96a-97a

Hoffman Plastic Compounds, Inc. v. NLRB, 237 F.3d 639 (D.C. Cir. 2001) 1a-36a

---

* Page designations followed by an "a" refer to items in the appendix to Petitioner's Petition for Writ of Certiorari.

General Docket
US Court of Appeals for the DC Circuit
98-1570

HOFFMAN PLASTIC COMPOUND, INC.

Petitioner

v.

NATIONAL LABOR RELATIONS BOARD

Respondent

12/2/98	PETITION FOR REVIEW CASE docketed. Petition for Review filed by Petitioner Hoffman Plstcs. [400321-1] (sha)
12/3/98	CLERK'S ORDER filed directing Petitioner to file [400322-1]: docketing statement due 1/4/99 for Hoffman Plstcs; certificate of counsel due 1/4/99 for Hoffman Plstcs; statement of issues due 1/4/99 for Hoffman Plstcs; any procedural motions due 1/4/99 for Hoffman Plstcs; deferred appendix notice due 1/4/99 for Hoffman Plstcs; any dispositive motions due 1/19/99 for Hoffman Plstcs;, directing Respondent to file [400322-2]: any procedural motions due 1/4/99 for NLRB; appearance form due 1/19/99 for NLRB; certified index to the record due 1/19/99 for NLRB; any dispositive motions due 1/19/99 for NLRB;. (sha)
12/14/98	ENTRY OF APPEARANCE filed by Attorney John Duncan Burgoyne for Respondent NLRB [402734-1]. (sha)
12/17/98	ENTRY OF APPEARANCE filed by Attorney Frederick Lee Cornnell for Respondent NLRB [403902-1]. (sha)

12/21/98 ENTRY OF APPEARANCE filed by Attorney Sharon I. Block for Respondent NLRB [404168-1]. (sha)

12/23/98 CROSS-APPLICATION for ENFORCEMENT filed (5 copies) by Respondent NLRB (certificate of service dated 12/22/98) [405055-1]. (mcm)

1/4/99 INITIAL SUBMISSIONS filed by Petitioner Hoffman Plstcs [406530-1]: docketing statement; certificate of counsel; statement of issues; deferred appendix notice (Deferred Appendix needed = Y). (mcm)

1/14/99 INITIAL SUBMISSIONS filed by Respondent NLRB [409811-1]: 28(a)(1) certificate (mam)

1/28/99 CLERK'S ORDER filed directing Respondent to file [412409-2]: certified index to the record due 2/12/99. (sha)

2/1/99 MOTION filed (5 copies) (certificate of service dated 2/1/99) to allow amicus curiae in support of NLRB [413325-1]. Motion filed by Amer Fed Labor (mam)

2/1/99 STATEMENT filed by Movant-AmicusCuriae-Respondent Amer Fed Labor pursuant to FRAP 26.1 providing corporate disclosure listing [413333-1] Certificate of Service date 2/1/99 (mam)

2/3/99 INITIAL SUBMISSIONS filed by Respondent NLRB [413888-1]: certified index to the record;. (sha)

2/23/99 CLERK'S ORDER filed granting non-party motion to allow amicus filed by Amer Fed Labor [413325-1]. (sha)

3/1/99 CLERK'S ORDER filed to schedule oral argument [419597-1] before Judge Initials: DBS JWR DST on 10/13/99; Establishing the initial briefing schedule [419597-2]: Petitioner's brief due on 5/25/99; Respondent's brief due on 6/24/99; Amicus Curiae's brief due on 7/9/99; Petitioner's reply brief due on 7/23/99; Deferred appendix due on 7/30/99 Final briefs due on 8/13/99. (cwc)

5/25/99 BRIEF filed by Petitioner Hoffman Plstcs [438163-1]. Copies: 7. Certificate of service date 5/25/99. (mcm)

5/27/99 SUPPLEMENT (errata - corporate disclosure statement) to [439261-1] brief [438163-1] filed by Petitioner Hoffman Plstcs. (mam)

6/24/99 BRIEF filed by Respondent NLRB [445152-1]. Copies: 6. Certificate of service date 6/24/99. (mcm)

7/12/99 BRIEF filed by Amicus Curiae for Respondent Amer Fed Labor [449655-1]. Copies: 15. Certificate of service date 7/9/99. (mcm)

7/23/99 REPLY BRIEF filed by Petitioner Hoffman Plstcs [451985-1]. Copies: 6. Certificate of service date 7/23/99. (mcm)

7/30/99 DEFERRED APPENDIX filed by Petitioner Hoffman Plstcs [453897-1]. Copies: 10. Certificate of service date 7/30/99. (mcm)

8/3/99 NOTICE filed by Amicus Curiae for Respondent Amer Fed Labor advising the court that they do not intend to submit a final brief and did not refer to the factual record in their initial brief which was submitted in final form. [455264-1] . Certificate of service date 8/3/99. (mcm)

8/11/99 FINAL BRIEF filed by Respondent NLRB [456201-1]. Copies: 14 certificate of service date 8/11/99. (mcm)

8/13/99 SUPPLEMENT to the DEFERRED APPENDIX (PAGES 147 & 249) lodged by Petitioner Hoffman Plstcs [456664-1]. Copies: 10. Certificate of service date 8/13/99. (mcm)

8/13/99 MOTION filed (5 copies) by Petitioner Hoffman Plstcs (certificate of service dated 8/13/99) for leave to file [456665-1] a lodged supplement to the deferred appendix [456664-1]. (mcm)

8/13/99 FINAL BRIEF filed by Petitioner Hoffman Plstcs [456817-1]. Copies: 14. Certificate of service date 8/13/99. (mcm)

8/13/99 FINAL REPLY BRIEF filed by Petitioner Hoffman Plstcs [456829-1]. Copies: 14 . Certificate of service date 8/13/99. (mcm)

8/20/99 CLERK'S ORDER filed granting motion to supplement the deferred appendix filed by Hoffman Plstcs [456665-1] Directing Clerk to file the lodged documents as a supplement to the deferred appendix [456664-1] . [Entry Date: 8/20/99] (cwc)

8/20/99 PER ABOVE ORDER lodged supplement to the deferred appendix [456664-1] is filed. (cwc)

9/21/99 PER CURIAM ORDER filed to allocate oral argument times: APET minutes-15 ERES minutes-15. [464744-1], one counsel per side to argue. [464744-2] Oral argument scheduled for 10/13/99, Form 72 notice of attorney arguing case – [464744-3] due 10/6/99. [Entry Date: 9/21/99] (cwc)

9/29/99 MOTION filed (5 copies) by Amicus Curiae for Respondent Amer Fed Labor (certificate of service dated 9/29/99) for leave to participate in oral argument [466996-1]. (mcm)

10/1/99 PER CURIAM ORDER filed granting motion of American Federation of Labor and Congress of Industrial Organizations to participate in oral argument. Three minutes of the Board's time is ceded to amicus. [466996-1] Entry Date: 10/1/99] (lej)

10/5/99 FORM filed by Attorney Marsha Siegel Berzon for amicus curiae [468185-1] regarding, Form 72 notice of attorney arguing case – [468185-2]. (gde)

10/6/99 FORM filed by Attorney Maurice Baskin for petitioner [468183-1] regarding, Form 72 notice of attorney arguing case – [468183-2]. (gde)

10/8/99 FORM filed by Attorney Sharon I. Block for respondent [468867-1] regarding, Form 72 notice of attorney arguing case – [468867-2]. (gde)

10/13/99 ORAL ARGUMENT HELD before Sentelle, Rogers, Tatel. (gde)

11/5/99 LETTER filed by Amicus Curiae for Respondent Amer Fed Labor pursuant to FRAP 28j advising of additional authorities [475215-1]. Certificate of service date 11/2/99. (cwc)

3/17/00 JUDGMENT for the reasons in the accompanying opinion denying petition for review [400321-1] filed by Hoffman Plstcs & granting cross-application for enforcement filed by NLRB [405055-1]. Before Judges Sentelle, Rogers, Tatel. [Entry Date: 3/17/00] (edb)

3/17/00 OPINION (34 pgs) for the Court filed by Judge Tatel, DISSENTING OPINION (7 pgs) filed by Judge Sentelle. (edb)

3/17/00 CLERK'S ORDER filed The Clerk is directed to withhold issuance of the mandate pending disposition of any timely petition for rehearing. [Entry Date: 3/17/00] (edb)

3/24/00 LETTER filed by Amicus Curiae for Respondent Amer Fed Labor terminating involvement of attorney Berzon [505799-1] (Judge Berzon was recently confirmed as a judge on the Court of Appeals for the Ninth Circuit). Certificate of service date 3/17/00. (mam)

3/24/00 REQUEST filed by Respondent NLRB bill of costs [505851-1]. Certificate of service date 3/23/00. (mam)

5/1/00 SUGGESTION filed (19 copies) by Petitioner Hoffman Plstcs certificate of service dated 5/1/00) for rehearing in banc [518057-1] (mcm)

5/5/00 CLERK'S ORDER filed directing respondent to respond to the petitioner's suggestion hearing in banc [518057-1] and to do so on or before May 22, 2000. A reply to the response will not be accepted by the court [Entry Date: 5/19/00] (mcm)

5/22/00 RESPONSE filed [518896-1] (5 copies) by Respondent NLRB certificate of service dated 5/22/00) to the petitioners suggestion for rehearing en banc [518057-1]. (mcm)

6/16/00 PER CURIAM ORDER, In Banc, filed granting suggestion rehearing in banc filed by Hoffman Plstcs [518057-1] and vacating the court's 3/17/00 judgment. Order governing

further proceedings will issue at a later date. [504120-1]. Before Judges Edwards, Silberman, Williams, Ginsburg, Sentelle, Henderson, Randolph, Rogers, Tatel. Circuit Judge Garland did not participate in this matter. [Entry Date: 6/19/00] (mam)

6/26/00 PER CURIAM ORDER, In Banc, filed that oral argument before the court en banc will be heard on Wednesday, 9/27/00 at 9:30 a.m. [525528-1] The parties shall submit thirty copies of each of the briefs and appendices previously filed by 8/25/00. The following supplemental briefing schedule shall apply: [525528-2]: Petitioner's brief due on 8/2/00; Respondent's brief due on 8/17/00; Petitioner's reply brief due on 8/25/00. Before Judges Edwards, Silberman, Williams, Ginsburg, Sentelle, Henderson, Randolph, Rogers, Tatel, Garland*. Circuit Judge Garland did not participate in this matter. [Entry Date: 6/26/00] (lej)

7/10/00 MOTION filed (19 copies) by Amicus Curiae for Respondent Amer Fed Labor (certificate of service dated 7/10/00) for leave to file [528594-1] a brief. (mam)

7/19/00 PER CURIAM ORDER, In Banc, filed granting motion filed by Amer Fed Labor for leave a file a brief as an amicus curiae on rehearing [528594-1]; Amicus briefs due on or before 8/17/00. [530835-1]. Before Judges Edwards, Silberman, Williams, Ginsburg, Sentelle, Henderson, Randolph, Rogers, Tatel. [Entry Date: 7/19/00] (cwc)

8/2/00 SUPPLEMENTAL BRIEF filed by Petitioner Hoffman Plstcs [534749-1]. Copies: 30. Certificate of service (mcm)

8/3/00 TRANSCRIPT of oral argument held on 9/27/00. [400319-1] (mam)

8/4/00 BRIEF filed by Amicus Curiae for Respondent Amer Fed Labor [534871-1]. Copies: 30. Certificate of service date 8/4/00 (Judge Marsha Berzon appears on brief and was terminated as counsel in this case on 3/24/00) (mcm)

8/8/00 TRANSCRIPT (corrected) of oral argument held on 9/27/00. [400319-1] (mam)

8/15/00 SUPPLEMENTAL BRIEF filed by Respondent NLRB [537310-1]. Copies: 30. Certificate of service date 8/15/00. (mcm)

8/16/00 SUPPLEMENTAL BRIEF filed by Amicus Curiae for Respondent Amer Fed Labor [537348-1]. Copies: 30. Certificate of service date 8/16/00. (mcm)

8/22/00 BRIEF filed by Petitioner Hoffman Plstcs [538813-1]. Copies: 30. Certificate of service date 8/22/00. [REPLACED WITH CORRECTED FILING ON 9/1/00 – ID# 540958] (mcm)

8/22/00 REPLY BRIEF filed by Petitioner Hoffman Plstcs [538814-1]. Copies: 30. Certificate of service date 8/22/00. (mcm)

8/22/00 BRIEF filed by Respondent NLRB [538815-1]. Copies: 30. Certificate of service date 8/22/00. (mcm)

8/22/00 JOINT APPENDIX filed by Petitioner Hoffman Plstcs [538818-1] Copies: 30. Certificate of service date 8/22/00. (mcm)

8/22/00 SUPPLEMENT [539434-1] to appendix (errata to appendix) [538818-1] lodged by

Petitioner Hoffman Plstcs. (Note: attached to motion for leave to supplement deferred appendix). (mam)

8/22/00 MOTION filed (5 copies) by Petitioner Hoffman Plstcs (certificate of service dated 8/13/00) for leave to file [539440-1] a supplement to appendix [539434-1]. (mam)

8/25/00 SUPPLEMENTAL REPLY BRIEF filed by Petitioner Hoffman Plstcs [540304-1]. Copies: 30. Certificate of service date 8/25/00. (mam)

9/1/00 BRIEF filed by Petitioner Hoffman Plstcs [540958-1]. Copies: 30. Certificate of service date 8/13/99. [REPLACES COPIES OF BRIEF FILED ON 8/22/00 – ID#538813] (mcm)

9/14/00 PER CURIAM ORDER, In Banc, filed to allocate oral argument times: APET minutes-30 ERES minutes-30. [543319-1], Form 72 notice of attorney arguing case – [543319-2] due 9/21/00. [Entry Date: 9/14/00] (cwc)

9/21/00 PER CURIAM ORDER, In Banc, filed granting motion leave to file filed by Hoffman Plstcs [539440-1] Directing Clerk to file the lodged supplement to the deferred appendix [539434-1]. Before Judges Edwards, Silberman, Williams, Ginsburg, Sentelle, Henderson, Randolph, Rogers, ~~Tatel.~~ [Entry Date: 9/21/00] (lej)

9/21/00 FORM filed by Attorney James B. Coppess [545166-1] regarding, Form 72 notice of attorney arguing case – [545166-2]. (cco)

9/22/00 FORM filed by Attorney Maurice Baskin [545381-1] regarding, Form 72 notice of attorney arguing case – [545381-2]. (cco)

9/22/00 FORM filed by Attorney Sharon I. Block [545384-1] regarding, Form 72 notice of attorney arguing case – [545384-2]. (cco)

9/27/00 ORAL ARGUMENT HELD before Edwards, Silberman, Williams, Ginsburg, Sentelle, Henderson, Randolph, Rogers, Tatel, Garland. (cco)

1/16/01 JUDGMENT denying petition for review and granting cross-application for enforcement for the reasons stated in the accompanying opinion. Before Judges Edwards, Williams, Ginsburg, Sentelle, Henderson, Randolph, Rogers, Tatel. [Entry Date: 1/17/01] (deb)

1/16/01 IN BANC OPINION (21 pgs) for the Court filed by Judge Tatel, DISSENTING OPINION (12 pgs) filed by Judge Sentelle, DISSENTING OPINION (1 pgs) filed by Judge Ginsburg. (deb)

2/16/01 CLERK'S ORDER filed granting request for costs filed by NLRB [505851-1]. Costs will be awarded to NLRB in the amount of $117.60 and taxed against Hoffman Plastic Compound, Inc. Costs are payable between parties and should not be submitted to the Clerk. [Entry Date: 2/16/01] (deb)

2/16/01 MANDATE ISSUED to NLRB [576697-1]. (deb)

4/20/01 LETTER dated April 19, 2001 for the Clerk of the Supreme Court of the US. The petition for a writ of certiorari in this case was filed April 16, 2001 and placed on the docket

April 18, 2001 as No. 00-1595. . Certificate of service date. (lme)

9/28/01 LETTER filed by Clerk stating Supreme Court granting Petition for Writ of Certiorari [628517-1] Certificate of service date 9/28/01. (mpt)